

OMB Control No: 0970-0114

Expiration date: 03/31/2027

THE PAPERWORK REDUCTION ACT OF 1995 (Pub. L. 104–13)

The purpose of this information collection is the application for CCDF funds and provides ACF and the public with a description of, and assurance about, the States' and Territories' child care programs. Public reporting burden for this collection of information is estimated to average 150 hours per response, including the time for reviewing instructions, gathering, and maintaining the data needed, and completing the form. This is a mandatory collection of information (Pub. L. 113–186), and 42 U.S.C. 9858.

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**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory New York

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:31:17 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

EQUAL ACCESS:AFFORDABILITY

Reason(s) for non-compliance:

- The Lead Agency does not limit all family co-payments to seven percent or less of family income, as required by 98.45(l)(3). Specifically, the lead agency is non-compliant because though co-payments for the lowest income families participating in CCDF are relatively negligible they do exceed 7% in some cases. (Plan Question 3.1.1a). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.
- The Lead Agency does not provide data on the extent to which CCDF providers charge families additional amounts above the required co-payment (including data on the size and frequency of such amounts), as required by 98.45(b)(5). (Plan Question 3.1.2eii)

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Co-payments: OCFS to set the family share (co-payment) at 1% of income exceeding the federal poverty level (FPL) for all families who are required to pay a family share. Effective 10/01/23, local social services districts (districts) can no longer select the percentage a family must pay toward the cost of child care assistance. This ensures consistency for families throughout New York State, in addition to lowering costs for families. This 1% family share cap means that the vast majority of families will pay no more than 0.7% of their income towards the cost of child care, significantly lower than the required 7% cap.	10/01/2023
2	Co-payments: OCFS to collaborate with local departments of social services commissioners, and other relevant stakeholders in order to discuss the potential impacts of this provision.	06/02/2025
3	Co-payments: OCFS to draft, approve and file regulatory amendments to ensure that OCFS limits all family co-payments to seven percent or less of family income.	06/02/2025

4	Co-payments: OCFS to draft, approve and issue policy updates related to the revised co-payment practices.	06/02/2025
5	Co-payments: OCFS to update computer systems to change the family share calculation requirements and process.	06/02/2025
6	Co-payments: OCFS to develop and update training materials related to the revised co-payment practice.	06/02/2025
7	Co-payments: OCFS to limit all family co-payments to seven percent or less of family income, as required by 98.45(l)(3).	06/02/2025
8	Data on provider charges above the co-payment: OCFS reviewed the plan question (3.1.2.e.ii) and after further review, proposed that if content is added to the answer, this could meet this non compliance	12/12/2024
9	Data on provider charges above the co-payment: OCFS drafted the proposed changes, which were submitted to OCC, and discussed the plan with them on 12/20/24	12/20/2024
10	Data on provider charges above the co-payment: OCFS to submit amendment, for plan question 3.1.2.e.ii) to include the size of the additional amounts charged, as per the MRS.	04/30/2025

HEALTH AND SAFETY:POSTING INSPECTION REPORTS

Reason(s) for non-compliance:

- The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for all licensed centers, license-exempt family child care (including group homes) and license-exempt in-home providers, as required by 98.33(a)(4). (Plan Question 5.5.4a). Please note the Lead Agency has an approved waiver for portions of this requirement through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	OCFS to develop capacity to display full inspection results for LE programs.	01/31/2025
2	OCFS to submit a draft proposal to OCC for review.	01/31/2025
3	OCFS to implement procedures to upload PDF versions of inspections for LE child care providers into the existing computer system of record, the Child Care Facility System (CCFS).	03/31/2025
4	OCFS to draft, approve and issue policy updates and communication to LE providers related to displaying inspections for LE child care providers.	06/30/2025
5	OCFS to update and develop training materials related to the display of inspections for LE child care providers.	06/30/2025
6	OCFS to initiate uploading inspection reports for LE child care providers.	08/30/2025
7	OCFS to post full inspection reports for legally exempt (LE) informal child care providers (in-home child care and family child care), and LE group programs on the OCFS web site as per 98.33a.	08/01/2026

EQUAL ACCESS:PAYMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as required by 98.45(m)(1). (Plan Question 4.4.1a). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.
- The Lead Agency does not pay based on enrollment or alternatively does not provide justification that this is impracticable or is not a generally-accepted practice, as required by 98.45(m)(2). (Plan Question 4.4.1b). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Prospective Payment: OCFS to collaborate with local departments of social services commissioners, and other relevant stakeholders in order to discuss the potential impacts of this provision. OCFS to collaborate with NYC to identify and address any barriers to this provision specific to NYC. NYC may need to make changes to the City Charter to accommodate paying prospectively. This change will need to take place over multiple budget cycles, which requires legislative and executive approvals.	03/31/2025
2	Prospective Payment: OCFS to draft, approve and propose changes to statute to require that child care providers are paid prospectively. Statutory changes must be passed by the NYS Legislature and signed by the Governor. OCFS to draft, approve and file regulatory amendments to require prospective payments. OCFS to draft, approve and issue policy updates related to prospective payments.	04/30/2026
3	Prospective Payment: OCFS to ensure that there is adequate funding to address the shift of costs to LDSSs.	01/30/2026
4	Prospective Payment: OCFS to update computer systems to process payments prospectively. OCFS to update and develop training materials related to prospective payments.	07/31/2026
5	Prospective Payment: OCFS to pay all provider types prospectively or alternatively demonstrate that it is not a generally-accepted practice for all provider types, as required by 98.45(m)(1).	07/30/2026
6	Payments Based on Enrollment: OCFS to collaborate with local departments of social	03/31/2025

	services commissioners, and other relevant stakeholders in order to discuss the potential impacts of this provision.	
7	Payments Based on Enrollment: OCFS to draft, approve and propose changes to statute to allow the CCAP to pay providers based on enrollment. Statutory changes must be passed by the NYS Legislature and signed by the Governor.	06/30/2025
8	Payments Based on Enrollment: OCFS to draft, approve and file regulatory amendments to require payments based on enrollment. OCFS to draft, approve and issue policy updates related to requiring payments based on enrollment.	04/30/2026
9	Payments Based on Enrollment: OCFS to update computer systems to process payments based on enrollment. OCFS to update and develop training materials related to payments based on enrollment.	08/31/2026
10	Payments Based on Enrollment: OCFS to pay based on enrollment or alternatively provide justification that this is impracticable or is not a generally-accepted practice, as required by 98.45(m)(2).	08/31/2026

PROGRAM INTEGRITY: EFFECTIVE FISCAL MANAGEMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency is on a corrective action plan (CAP) for an error rate over 10% reflecting that not all of its fiscal management and internal control practices are sufficiently effective, as required by 98.68(a). (Plan Questions 10.1.2, 10.1.3, 10.1.4, 10.1.5a, and 10.1.6a)

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
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1	OCFS to conduct case file reviews annually.	03/31/2025
2	OCFS to gather information during annual site visits and assess district barriers.	03/31/2025
3	OCFS to review district settings in CCTA for districts that use CCTA.	06/30/2025
4	OCFS to formulate and administer income calculation and family share work sheet for districts to follow.	12/31/2025
5	OCFS to conduct quarterly examiner calls to provide clarification and regulation and policy support.	03/31/2026
6	OCFS to host bi-annual meetings with districts where review of policy and expectations will occur.	03/31/2026
7	OCFS to encourage districts to review training calendar and engage in relevant training, to aid with this, OCFS will disseminate a training newsletter. Staff attendance at trainings will be reviewed and discussed during site visits	03/31/2026
8	OCFS to evaluate the potential of development of additional income calculation tools for districts to utilize.	03/31/2026
9	OCFS to reduce the error rate to below 10% reflecting that its fiscal management and internal control practices are sufficiently effective, as required by 98.68(a).	07/30/2026